

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Mulinelli (S)	Team: Squad #01	CCRB Case #: 201604285	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/10/2016 5:00 PM	Location of Incident: In front of § 87(2)(b); 108th Precinct stationhouse	18 Mo. SOL 11/10/2017	Precinct: 108		
Date/Time CV Reported Wed, 05/11/2016 6:15 AM	CV Reported At: Other City agency	How CV Reported: Phone	Date/Time Received at CCRB Mon, 05/16/2016 11:35 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Andres Libreros	04129	935187	NARCBQN
2. DT3 Brian Tribble	07160	935870	NARCBQN
3. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Colleen Jennings	06967	943404	NARCBQN
2. SGT Joel Edwards	03692	936544	NARCBQN

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Andres Libreros	Force: At § 87(2)(b) in Queens, Detective Andres Libreros pointed his gun at § 87(2)(b)	A . Unsubstantiated
B . DT3 Andres Libreros	Force: At § 87(2)(b) in Queens, Detective Andres Libreros pointed his gun at § 87(2)(b)	B . Unsubstantiated
C . DT3 Andres Libreros	Abuse: At § 87(2)(b) in Queens, Detective Andres Libreros threatened § 87(2)(b) with the use of force.	C . Unsubstantiated
D . DT3 Andres Libreros	Abuse: At § 87(2)(b) in Queens, Detective Andres Libreros threatened § 87(2)(b) with the use of force.	D . Unsubstantiated
E . DT3 Andres Libreros	Discourtesy: At § 87(2)(b) in Queens, Detective Andres Libreros spoke discourteously to § 87(2)(b)	E . Unsubstantiated
F . DT3 Brian Tribble	Discourtesy: At § 87(2)(b) in Queens, Detective Brian Tribble spoke discourteously to § 87(2)(b)	F . Unsubstantiated
G . DT3 Andres Libreros	Force: At § 87(2)(b) in Queens, Detective Andres Libreros used physical force against § 87(2)(b)	G . Alleged Victim Uncooperative
H . DT3 Andres Libreros	Abuse: At § 87(2)(b) in Queens, Detective Andres Libreros searched § 87(2)(b)	H . Substantiated

Officer(s)	Allegation	Investigator Recommendation
I . DT3 Andres Libreros	Abuse: At § 87(2)(b) in Queens, Detective Andres Libreros questioned § 87(2)(b)	I . Substantiated
J . DT3 Brian Tribble	Force: At § 87(2)(b) in Queens, Detective Brian Tribble used physical force against § 87(2)(b)	J . Unsubstantiated
K . DT3 Andres Libreros	Discourtesy: At § 87(2)(b) in Queens, Detective Andres Libreros spoke discourteously to § 87(2)(b)	K . Alleged Victim Uncooperative
L . DT3 Andres Libreros	Abuse: At § 87(2)(b) in Queens, Detective Andres Libreros threatened § 87(2)(b) with the use of force.	L . Alleged Victim Uncooperative
M . Officers	Force: At § 87(2)(b) in Queens, officers used physical force against § 87(2)(b)	M . Officer(s) Unidentified
N . DT3 Andres Libreros	Discourtesy: At the 108th Precinct stationhouse, Detective Andres Libreros spoke discourteously to § 87(2)(b)	N . Substantiated
O . DT3 Andres Libreros	Discourtesy: At the 108th Precinct stationhouse, Detective Andres Libreros spoke discourteously to § 87(2)(b)	O . Unsubstantiated
P . DT3 Andres Libreros	Abuse: At the 108th Precinct stationhouse, Detective Andres Libreros threatened § 87(2)(b) with the use of force.	P . Unsubstantiated
Q . DT3 Andres Libreros	Abuse: At the 108th Precinct stationhouse, Detective Andres Libreros threatened to arrest § 87(2)(b)	Q . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On May 10, 2016, at approximately 5:00 p.m., § 87(2)(b) was rolling a marijuana cigarette in front of § 87(2)(b) in Queens. He was accompanied by his friend, § 87(2)(b). As § 87(2)(b) rolled the marijuana cigarette, he observed an unmarked blue van parked on the street. He did not know that the van was occupied by officers.

Moments later, Det. Andres Libreros, of Queens Narcotics, approached § 87(2)(b) and § 87(2)(b) and pointed his gun at them (**Allegations A and B**). Det. Libreros reportedly told § 87(2)(b) to put his hands up or he would shoot him (**Allegation C**). Det. Libreros also threatened to shoot § 87(2)(b) (**Allegation D**). § 87(2)(b) protested, and Det. Libreros allegedly called him a pussy (**Allegation E**).

Det. Libreros' partner, Det. Brian Tribble, also of Queens Narcotics, arrived seconds after Det. Libreros. When § 87(2)(b) attempted to reason with Det. Tribble, stating that he knew detectives from the 108th and 114th Precincts, Det. Tribble allegedly stated that he did not like officers from those precincts because they were all pussies (**Allegation F**).

Det. Libreros reportedly pushed § 87(2)(b) against a gate (**Allegation G**). Det. Libreros allegedly searched § 87(2)(b) but found no contraband (**Allegations H**). Det. Libreros asked § 87(2)(b) if he had any guns or needles as he conducted the search (**Allegation I**). Det. Tribble frisked and searched § 87(2)(b) incident to arrest, reportedly shaking him hard as he did so (**Allegation J**).

After the detectives found that § 87(2)(b) had no contraband, they released him from the scene. He was not issued a summons. Det. Libreros allegedly told § 87(2)(b) to get the fuck out of there, but he then asked § 87(2)(b) to return and provide his ID (**Allegation K, also Allegation I**). § 87(2)(b) protested Det. Libreros' actions, at which point Det. Libreros allegedly asked § 87(2)(b) if he wanted him to pull his gun out again (**Allegation L**). § 87(2)(b) ultimately provided his ID to Det. Libreros and was released shortly thereafter.

Det. Libreros called other members of his team, including Sgt. Joel Edwards, to verify the arrest. After those officers arrived, § 87(2)(b) was escorted to the prisoner van by officers, who pushed § 87(2)(b) by his neck and then shoved him into the van (**Allegation M**). § 87(2)(b) was transported to the 108th Precinct stationhouse by Det. Libreros and Det. Tribble. After approximately two hours in the cell area, Det. Libreros entered and spoke with other prisoners in Spanish. Det. Libreros allegedly said in Spanish that § 87(2)(b) was lucky that he did not shoot him, and that he would shoot § 87(2)(b) because he did not care about his badge (**Allegation N**). When § 87(2)(b) told Det. Libreros that he was acting irrationally, Det. Libreros spoke in Spanish and allegedly called him a "marica," which loosely translates to "pussy" (**Allegation O**). Det. Libreros allegedly continued to insult § 87(2)(b) calling him a pussy and a softie (**also Allegation O**). Det. Libreros also reportedly told § 87(2)(b) that he would fuck him up and beat him up (**Allegation P**).

§ 87(2)(b) was ultimately released with a Desk Appearance Ticket (DAT). While § 87(2)(b) was signing the DAT, Det. Libreros allegedly told § 87(2)(b) that if he did not appear in court, he

would go to § 87(2)(b)'s mother's house, break down the door, beat § 87(2)(b) up in front of his mother, and take him to jail (**also Allegation P, Allegation Q**).

There was no video footage available for this case.

Mediation, Civil and Criminal Histories

§ 87(2)(b) declined to mediate this complaint § 87(2)(b).

As of July 26, 2016, no Notice of Claim has been filed in regards to this incident [01 Board Review].

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

This is the first CCRB complaint featuring either § 87(2)(b) or § 87(2)(b) [03 Board Review].

This is the second CCRB case filed against Det. Libreros in his 12 year tenure. He has not previously been the subject of any allegation made in this case. No allegations have been substantiated against him.

This is the fourth CCRB case filed against Det. Tribble during his 12 year tenure. He was previously the subject of a discourtesy allegation in 2006, but the complaint was withdrawn. No allegations have been substantiated against him.

Potential Issues

While he provided a brief phone statement, § 87(2)(b) missed an appointment and was not responsive to follow up contact attempts to reschedule. As such, he did not provide sworn testimony [see IAs].

§ 87(2)(b) stated that the father of one of friends, § 87(2)(b) lived in the area and witnessed a portion of the incident. However, he stated that § 87(2)(b) may not wish to participate in the complaint § 87(2)(b). § 87(2)(b) was reached via phone several times but stated each time that he was at work and would like a call back in the evening. § 87(2)(b) was unresponsive to the follow up calls he requested, and he did not provide a statement to the investigation [04 Board Review, see IAs].

§ 87(2)(g) § 87(2)(b)
§ 87(2)(b) provided a partial phone statement but did not provide sworn testimony [05 Board Review, see IAs].

Findings and Recommendations

Allegations not pleaded

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

Allegation A – Force: At § 87(2)(b) in Queens, Detective Andres Libreros pointed his gun at § 87(2)(b)

Allegation B – Force: At § 87(2)(b) in Queens, Detective Andres Libreros pointed his gun at § 87(2)(b)

Allegation C – Abuse of Authority: At § 87(2)(b) in Queens, Detective Andres Libreros threatened § 87(2)(b) with the use of force.

Allegation D – Abuse of Authority: At § 87(2)(b) in Queens, Detective Andres Libreros threatened § 87(2)(b) with the use of force.

§ 87(2)(b) testified that he and § 87(2)(b) stopped in front of § 87(2)(b) in order to roll a marijuana cigarette. § 87(2)(b) passed the marijuana to § 87(2)(b) who began sorting it in a folded dollar bill. As § 87(2)(b) rolled the marijuana, he observed an unmarked blue van parked on the street. He did not know that it was occupied by officers but was certain that anyone a mile away could have seen what he was doing.

According to § 87(2)(b) Det. Libreros approached moments later from behind a tree. § 87(2)(b) was not immediately aware that Det. Libreros was approaching but was alerted when § 87(2)(b) told him to be careful. § 87(2)(b) stated that he looked back at § 87(2)(b) and noticed that he put his hands in the air. § 87(2)(b) then reportedly put his hands in the air, with his arms bent at 90 degrees, once he saw Det. Libreros. Det. Libreros allegedly approached with his gun in his left hand and pointed at § 87(2)(b)'s head. § 87(2)(b) added that Det. Libreros told him to put his hands up or he would shoot him, and that he repeated this request several times despite § 87(2)(b) already having his hands up. § 87(2)(b) denied that he placed his hands into his pockets or

waistband area, or that he or § 87(2)(b) attempted to flee at any point. According to § 87(2)(b) Det. Libreros also pointed his gun at § 87(2)(b) but the gun was pointed at § 87(2)(b) for the majority of the time. At some point during this interaction, Det. Libreros reportedly told both § 87(2)(b) and § 87(2)(b) that he was going to shoot them [06 Board Review].

§ 87(2)(b) provided a phone statement while at work. Similar to § 87(2)(b) § 87(2)(b) stated that he called § 87(2)(b)'s attention to the presence of the officers. At that point, Det. Libreros reportedly approached § 87(2)(b) from behind a tree with his gun already drawn and pointed at § 87(2)(b). § 87(2)(b) stated that he realized that Det. Libreros' view of him may have been obstructed by the tree, so he took extra effort to show that his hands were up. § 87(2)(b) made no mention of Det. Libreros threatening to shoot him or § 87(2)(b) [07 Board Review].

Det. Tribble stated that he was driving the prisoner van when he and Det. Libreros observed § 87(2)(b) § 87(2)(b) rolling a marijuana cigarette. The detectives stopped and exited their van, but Det. Libreros reached the sidewalk first as he was the passenger and was closest to the men. As the officers identified themselves, § 87(2)(b) also told § 87(2)(b) of the officers' presence. Then, § 87(2)(b) § 87(2)(b) who had been facing away from the officers, reportedly turned around and immediately placed one of his hands into the front of his waistband. Det. Libreros then drew his firearm, pointed it in the vicinity of § 87(2)(b) and stated, "Police. Don't move." Det. Tribble denied that Det. Libreros pointed his gun at § 87(2)(b) at any point [08 Board Review].

Det. Libreros testified that he exited his van and was on the same side of the street as § 87(2)(b) and § 87(2)(b). Det. Tribble was coming from the opposite side of the van. Det. Libreros stated that as soon as he exited the van, § 87(2)(b) announced to § 87(2)(b) in a loud voice, "Yo, police." Det. Libreros continued to approach and addressed § 87(2)(b) by saying, "Police, don't move." According to Det. Libreros, § 87(2)(b) turned, bladed his body, and immediately placed his right hand, or possibly both hands, into the front right portion of his waistband. Det. Libreros stated that he felt threatened by this action, and he drew his firearm and pointed it in the vicinity of § 87(2)(b). He denied having his weapon drawn at any point prior to this. He then commanded § 87(2)(b) not to move and to show his hands. § 87(2)(b) reportedly complied immediately, at which point Det. Tribble arrived on the sidewalk and handcuffed § 87(2)(b). Det. Libreros testified that he then holstered his firearm. Det. Libreros denied telling § 87(2)(b) that he would shoot him at any point.

Det. Libreros corroborated Det. Tribble's testimony that he observed no threatening actions from § 87(2)(b). Det. Libreros denied pointing his firearm at § 87(2)(b) or telling him that he was going to shoot him [09 Board Review].

§ 87(2)(g)
§ 87(2)(g)
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§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **allegations A through D** be closed as **unsubstantiated**.

Allegation E – Discourtesy: At § 87(2)(b) in Queens, Detective Andres Libreros spoke discourteously to § 87(2)(b)

Allegation F – Discourtesy: At § 87(2)(b) in Queens, Detective Brian Tribble spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that he pleaded with Det. Libreros to recognize that he was only smoking weed as Det. Libreros pointed his gun at him. According to § 87(2)(b) Det. Libreros responded by calling him a pussy. § 87(2)(b) also stated that he later attempted to reason with Det. Tribble, and that he mentioned that he knew various officers from the 108th and 114th Precincts. Det. Tribble allegedly responded that he did not like officers from those precincts because they were all pussies [06 Board Review].

§ 87(2)(b) stated that Det. Libreros cursed at him and § 87(2)(b) though he did not specify which words were used. § 87(2)(g)

§ 87(2)(b) made no mention of Det. Tribble stating that officers from the 108th and 114th Precincts were pussies [07 Board Review].

Det. Libreros denied calling § 87(2)(b) a pussy. His testimony was corroborated by Det. Tribble, who also denied the allegation. Det. Tribble denied telling § 87(2)(b) that he believed that officers from the 108th and 114th Precincts were pussies. Neither officer remembered § 87(2)(b) claiming to know other members of the service. Both officers denied that any profane language was used towards § 87(2)(b) [08-09 Board Review].

§ 87(2)(g)

It is therefore recommended that **allegations E and F** be closed as **unsubstantiated**.

Allegation G – Force: At § 87(2)(b) in Queens, Detective Andres Libreros used physical force against § 87(2)(b)

Allegation K – Discourtesy: At § 87(2)(b) in Queens, Detective Andres Libreros spoke discourteously to § 87(2)(b)

Allegation L – Abuse of Authority: At § 87(2)(b) in Queens, Detective Andres Libreros threatened § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that Det. Libreros approached him and § 87(2)(b) from behind a tree and then pushed both of them against a fence. He also stated that Det. Libreros told him to get the fuck out of there once he was allowed to leave the scene. § 87(2)(b) acknowledged that he protested Det. Libreros' conduct. According to § 87(2)(b) Det. Libreros asked if he wanted him to pull his gun out again. § 87(2)(g)

§ 87(2)(b) it is recommended that **allegations G, K, and L** be closed as **victim uncooperative**.

Allegation H – Abuse of Authority: At § 87(2)(b) in Queens, Detective Andres Libreros searched § 87(2)(b)

Allegation I – Abuse of Authority: At § 87(2)(b) in Queens, Detective Andres Libreros questioned § 87(2)(b)

As noted above, § 87(2)(b) stated that § 87(2)(b) was rolling a marijuana cigarette at the time the officers approached. § 87(2)(b) reported that he was searched by Det. Libreros while standing against a gate. Specifically, he stated that Det. Libreros reached into his pockets and removed his wallet. Det. Libreros also asked § 87(2)(b) if he had anything sharp on his person. § 87(2)(b) informed Det. Libreros that he had a few toothpicks. Det. Libreros then allegedly looked through § 87(2)(b)'s wallet, removing \$17.00 and stating that he would leave it there. Det. Libreros then told § 87(2)(b) to leave, but he allegedly called him back to the scene after he had walked about half a block away. § 87(2)(b) returned, at which point Det. Libreros allegedly asked for his ID. § 87(2)(b) protested briefly but eventually provided the ID to Det. Libreros, who reviewed the ID, returned it, and told § 87(2)(b) to go away. § 87(2)(b) made no mention of being frisked by any officer [07 Board Review].

In his phone statement, § 87(2)(b) stated that he was rolling a marijuana cigarette when the officers approached, and he also asserted that § 87(2)(b) had marijuana in his hands at that time. In his sworn testimony, § 87(2)(b) stated that § 87(2)(b) passed the marijuana to him but did not specifically state that § 87(2)(b) had marijuana on his person as the officers approached. § 87(2)(b) testified that Det. Libreros searched § 87(2)(b) during the incident. He reportedly emptied § 87(2)(b)'s pockets, removing his cell phone, keys, and wallet. Det. Libreros then allegedly removed seven or eight dollars from § 87(2)(b)'s wallet. No drugs were recovered from § 87(2)(b). According to § 87(2)(b) Det. Libreros removed § 87(2)(b)'s ID during the search, and he also asked both men if they had any guns or needles on their persons [06 Board Review].

As noted above, Det. Libreros testified that § 87(2)(b) reached for his waistband, an action which made him fear for his safety. Det. Libreros stated that he did not observe § 87(2)(b) reaching for anything and that he observed no threatening behavior from § 87(2)(b). He reported that he observed no bulges on § 87(2)(b)'s person. Det. Libreros clarified that his fear for his safety

stemmed solely from § 87(2)(b) § 87(2)(g) Det. Tribble stated that he did not remember § 87(2)(b) making any threatening movements or displaying any characteristics to suggest that he had a weapon. According to Det. Tribble, only § 87(2)(b) was considered a threat during the incident. Det. Tribble denied that Det. Libreros searched § 87(2)(b) Both officers testified that § 87(2)(b) was standing near § 87(2)(b) while § 87(2)(b) was rolling a marijuana cigarette. Neither officer testified to observing § 87(2)(b) with any marijuana. Det. Tribble explicitly stated that § 87(2)(b) possessed none.

Det. Libreros acknowledged that he frisked § 87(2)(b) specifically in the area of his waistband. Det. Libreros stated that he frisked § 87(2)(b) because of § 87(2)(b)'s earlier actions and movements. Because § 87(2)(b) was with § 87(2)(b) and due to the fact that § 87(2)(b) had alerted § 87(2)(b) of the police, Det. Libreros wanted to make sure that § 87(2)(b) did not possess a weapon. Det. Libreros found no weapons on § 87(2)(b)'s person. Det. Libreros denied placing his hands into § 87(2)(b)'s pockets or searching him. He also denied that any officer emptied § 87(2)(b)'s pockets or that § 87(2)(b) emptied his pockets himself.

Det. Libreros also revealed that he asked § 87(2)(b) if he had a gun or any needles, and that he requested his ID. He asserted that he asked these questions for verification, though he cited no reason to believe that § 87(2)(b) possessed such items. He reportedly asked § 87(2)(b) for his ID in order to verify his identity. He clarified that although § 87(2)(b) posed no threat and was not found to be in possession of any contraband, his ID was still requested because he was right next to § 87(2)(b) and because he had announced the officers' presence. Det. Libreros did not document any information from § 87(2)(b)'s ID. He stated that he did not prepare a UF250 because § 87(2)(b) posed no threat [09 Board Review].

Det. Tribble also testified that Det. Libreros frisked § 87(2)(b) for weapons, though he did not remember where on his body the frisk was conducted. Det. Tribble did not remember any officer calling § 87(2)(b) back to the scene or asking him for his ID after he was told that he was free to go. He denied possessing § 87(2)(b)'s ID or recording any information from it [08 Board Review].

In order to question an individual, an officer must have founded suspicion that said individual has committed, is committing, or is about to commit a crime. An officer must have reasonable suspicion that an individual possesses a weapon in order to frisk an individual. Further, an officer must have probable cause to believe that an individual has committed a crime in order to search him. *People v De Bour*, 40 N.Y.2d 210 (1976) [10 Board Review].

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)

It is therefore recommended that **allegation H and I** be closed as **substantiated**.

Allegation J – Force: At § 87(2)(b) in Queens, Detective Brian Tribble used physical force against § 87(2)(b)

§ 87(2)(b) testified that Det. Tribble frisked him, reached into his waistband, and then shook his body hard. Det. Tribble reportedly told § 87(2)(b) to stop moving. According to § 87(2)(b) he was only moving because Det. Tribble was shaking him [06 Board Review].

§ 87(2)(b) stated that § 87(2)(b) verbally protested the officers' actions throughout the incident but made no mention of any physical movements § 87(2)(b) made. He provided no details regarding a frisk of § 87(2)(b) and therefore added no information about any alleged force used during said frisk [07 Board Review].

Det. Tribble acknowledged that he conducted a frisk of § 87(2)(b) incident to his arrest, and he added that § 87(2)(b) questioned why Det. Libreros had pointed his gun at him earlier. Det. Tribble made no mention of needing to control any physical movements of § 87(2)(b). He denied shaking § 87(2)(b) during the frisk [08 Board review].

Det. Libreros stated that he believed that he conducted the frisk of § 87(2)(b) himself. He did not remember seeing Det. Tribble frisk § 87(2)(b). Det. Libreros denied shaking § 87(2)(b) during the frisk [08 Board Review].

§ 87(2)(g)

it is recommended that **allegation J** be closed as **unsubstantiated**.

Allegation M – Force: At § 87(2)(b) in Queens, officers used physical force against

§ 87(2)(b)

§ 87(2)(b) testified that officers led him to the prisoner van after § 87(2)(b) was let go. He acknowledged that he continued asking why Det. Libreros had pointed his gun at him earlier and alleged that the officers then tossed him around. He clarified that he was pushed by the back of his neck at that time. § 87(2)(b) stated that there were several officers around him at the time, but he believed that either Det. Libreros or Det. Tribble pushed his neck. Officers then reportedly shoved § 87(2)(b) into the van. § 87(2)(b) did not specify which officers shoved him into the van [06 Board Review].

§ 87(2)(b) did not provide any testimony concerning § 87(2)(b) being escorted to the prisoner van. § 87(2)(g)

Det. Libreros and Det. Tribble consistently testified that there were no issues in escorting § 87(2)(b) from the scene of his arrest to the prisoner van, which was parked on the street near the incident location. Det. Libreros acknowledged that he called members of his team to the scene in order to verify the arrest, including his supervisor, Sgt. Edwards, and the arresting officer, PO Colleen Jennings. He stated that many members of the team escorted § 87(2)(b) but did not remember if he participated directly. Det. Tribble acknowledged direct participation. They both denied shoving § 87(2)(b) by his neck or any other part of his body at any point during this incident. Det. Libreros and Det. Tribble denied witnessing any officer push or shove § 87(2)(b) [08-09 Board Review].

§ 87(2)(g)

It is therefore recommended that **allegation M** be closed as **officers unidentified**.

Allegation N – Discourtesy: At the 108th Precinct stationhouse, Detective Andres Libreros spoke discourteously to § 87(2)(b)

Allegation O – Discourtesy: At the 108th Precinct stationhouse, Detective Andres Libreros spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that he was in the cell area of the 108th Precinct stationhouse for about two hours when Det. Libreros entered the area and spoke with other prisoners in Spanish. § 87(2)(b) heard this and discerned that Det. Libreros had a Colombian accent. § 87(2)(b) informed Det. Libreros that he was also of Colombian descent and again asked why he had pointed his gun at him. Det. Libreros reportedly stated in Spanish that § 87(2)(b) was lucky that he did not shoot him, and that he would shoot § 87(2)(b) because he did not care about his badge. § 87(2)(b) also alleged that Det. Libreros also called him a “marica,” which is a Spanish slang insult that roughly translates to “pussy.” According to § 87(2)(b) Det. Libreros continued to insult him in English by calling him a “softie, a “pussy.” [06 Board Review].

The investigation identified several potential witnesses from the 108th Precinct's Prisoner Holding Pen Roster [11 Board Review]. However, only two of those prisoners were successfully reached via phone [see IAs].

§ 87(2)(b) acknowledged that he was inside of the 108th Precinct stationhouse and within the cell area on the night of the incident. He stated that he was not paying attention to anything else that was going on as he was dealing with his own problems. § 87(2)(b) did not remember seeing a Hispanic male prisoner speak with a detective inside the stationhouse. He stated that he did not hear any of the discourteous language mentioned above [12 Board Review].

§ 87(2)(b) was reached via phone on June 13, 2016, at which time he confirmed that he was arrested and was in the cell area of the 108th Precinct on the night of the incident. § 87(2)(b) stated that he heard two men arguing in a mix of English and Spanish, and that he determined by their accents that they were both of Colombian descent. § 87(2)(b) stated that based on the context of their conversation, he determined that one of the men was a prisoner.

According to § 87(2)(b) the prisoner told the officer in a mix of English and Spanish that he should not have pointed a gun at him. The prisoner acknowledged that he had marijuana on him at the time of his arrest but also told the officer that he had thrown it to the ground and that there was no reason for a gun to be pointed at him. § 87(2)(b) revealed that the officer acknowledged that he pointed his gun at the prisoner and said that he did not trust anyone. The officer then reportedly said that if the prisoner had done anything at the scene of arrest, he would have shot him. § 87(2)(b) then stated that he was at work, and he asked if he could call the investigator back a short time later. § 87(2)(b) did not call back and was unresponsive to follow-up contact attempts. He provided no additional information [05 Board Review , see IAs].

Det. Libreros acknowledged that he spoke in Spanish with another prisoner, and that § 87(2)(b) discerned his Colombian accent. § 87(2)(b) then addressed him in Spanish, stating that he was also Colombian. According to Det. Libreros, § 87(2)(b) continued by stating that he was a § 87(2)(b) year-old kid and saying, "How dare you pull a gun out on me." Det. Libreros revealed that he explained why he had pointed his gun at § 87(2)(b) and added, "I'm sorry, but you're not a kid. You're § 87(2)(b). You're a grown man now." This conversation took place in Spanish. According to Det. Libreros, this was the only conversation they had.

Det. Libreros denied stating that § 87(2)(b) was lucky that he did not shoot him. He denied saying that he would have shot § 87(2)(b) or that he did not care about his badge. He denied telling § 87(2)(b) that if he had done anything else at the scene, he would have shot him. Det. Libreros did not call § 87(2)(b) a pussy or say that he was soft. Det. Libreros denied making any of these statements in English or in Spanish. Det. Libreros denied using any profanity toward § 87(2)(b) in English or in Spanish, and he asserted that § 87(2)(b) made no complaints of such language [09 Board Review].

Det. Tribble testified that he was present with § 87(2)(b) in the cell area of the stationhouse. According to Det. Tribble, he and Det. Libreros were required to interact with § 87(2)(b) including taking his fingerprints and processing his arrest, because they were assigned to the

Det. Libreros acknowledged that § 87(2)(b) was required to sign his DAT, but he did not remember if he was present when § 87(2)(b) signed it. According to Det. Libreros, as per procedure, the arresting officer for the day, in this case PO Jennings, would have been present for the signing and issuing of the DAT. PO Jennings also would have explained that a warrant would be issued for his arrest if § 87(2)(b) did not appear on the date specified on the DAT. Det. Libreros denied making the aforementioned threats of force and arrest to § 87(2)(b). He stated that he did not threaten to arrest or use force against § 87(2)(b) at any point [09 Board Review].

As previously outlined in allegation N, Det. Tribble stated that he would have been with § 87(2)(b) or within earshot of him throughout his time at the stationhouse. He denied hearing any of the aforementioned threats against § 87(2)(b). Further, he noted nothing out of the ordinary concerning § 87(2)(b)'s behavior at the stationhouse and asserted that he heard no argument between § 87(2)(b) and Det. Libreros [08 Board Review].

As mentioned above, § 87(2)(b) denied hearing any conversation between § 87(2)(b) and Det. Libreros. § 87(2)(b) provided no statement in regards to these particular allegations [12-05 Board Review, see IAs].

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **allegations P and Q** be closed as **unsubstantiated**.

§ 87(2)(g), § 87(4-b) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]

Squad: 1

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date